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|    |                                                                                                | <p>For the reasons stated above, <i>Kwok</i> does not address the assignment allegations relied on to establish standing and, consequently, this portion of the motion is denied.</p> <p>Additionally, the Court finds that the First Amended Complaint falls within the scope of leave to amend previously granted. (See ROA No. 78 and <i>Harris v. Wachovia Mortgage, FSB</i> (2010) 185 Cal.App.4th 1018, 1023.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 57 | <p><b>Jack Mitchell Construction, Inc. vs. IM Painting, Inc.</b></p> <p><b>25-01523321</b></p> | <p><b>1. Demurrer to Complaint</b><br/> <b>2. Motion to Strike Complaint</b></p> <p>NO TENTATIVE RULING. Parties to Appear on Zoom or in person.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 58 | <p><b>Palacios vs. Blue Link Wireless, LLC</b></p> <p><b>25-01474388</b></p>                   | <p><b>Motion to Compel Arbitration</b></p> <p>Tentative Ruling to be updated in the morning.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 59 | <p><b>REYNOLDS REALTY ADVISORS, INC. vs. CAPITAL INSIGHTS</b></p> <p><b>23-01359175</b></p>    | <p><b>Motion for Attorney Fees</b></p> <p>The unopposed Motion for Attorneys’ Fees brought by Defendant Capital Insights is GRANTED, in the reasonable amount of \$29,383.00.</p> <p>“In any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Civ. Code, §1717, subd. (a).)</p> <p>“The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment.” (Civ. Code, §1717, subd. (b)(1).) “[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract. The court may determine that there is no party prevailing on the contract for purposes of this section.” (Civ. Code, § 1717, subd. (b)(1).)</p> <p>This action sought to enforce a Property Management Agreement executed between Reynolds Realty Advisors, Inc. and Capital Insights. (See Exhibit A of Complaint [ROA No. 2].) Included within this agreement was a provision providing for the recovery of attorney fees. (<i>Id.</i> at ¶14.) Consistent with the above, Plaintiff requested attorneys’ fees in the Complaint. (¶11(g) of Complaint [ROA No. 2].)</p> <p>Nonetheless, there has been no showing Defendant is the prevailing party entitled to attorney fees, pursuant to the Property Management Agreement as: (1) It is undisputed Defendant Capital Insight settled Plaintiff’s claim based on the</p> |